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Flamin' Hot Cheetos and Doritos could be banned from California schools under proposed bill - New bill seeks to remove foods from California schools that contain artificial ingredients and food dyes

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A new bill seeks to ban some of America's most popular snacks from California public schools.

Flamin' Hot Cheetos, Doritos, and Takis could be banned throughout the state under the proposed bill, which seeks to remove foods from schools that contain artificial ingredients and food dyes.

According to CBS News, Democratic California State Assembly member Jesse Gabriel proposed legislation AB 2316 on Tuesday 12 March. In a social media post announcing the bill, Mr Gabriel said the additives found in these snacks are linked to serious health concerns.

If signed into legislation, the bill would prohibit schools from serving foods containing six synthetic food dyes – red 40, yellow 5, yellow 6, blue 1, blue 2, and green 3 – as well as titanium dioxide, a colouring agent commonly used in cosmetics and paints. Cheetos products, including Flamin' Hot Cheetos, and chips like Doritos contain the colourings red 40, yellow 5, and yellow 6 in its ingredients, while cereals like Froot Loops and Fruity Pebbles also contain yellow and red dyes.

The proposal comes nearly five months after California governor Gavin Newson signed into law the California Food Safety Act, which banned the sale of food and drinks that contained certain ingredients, including red dye 3, potassium bromate, and brominated vegetable oil. The law, which goes into effect in January 2027, will require food manufacturers using any of the chemicals to reformulate their products to continue selling foods in California.

Supporters of AB 2316 shared their concerns that the consumption of synthetic food dyes may result in hyperactivity or other neurobehavioral problems in children. "California has a responsibility to protect our students from chemicals that harm children and that can interfere with their ability to learn," said Mr Gabriel in a press release. "As a lawmaker, a parent, and someone who struggled with ADHD, I find it unacceptable that we allow schools to serve foods with additives that are linked to cancer, hyperactivity, and neurobehavioral harms. This bill will empower schools to better protect the health and wellbeing of our kids and encourage manufacturers to stop using these dangerous additives."

Mr Gabriel pointed to a 2021 report from the California Environmental Protection Agency, which found that the consumption of food dyes can cause or worsen hyperactivity and other behavioural problems in children.

A 2012 study by the National Institutes of Health (NIH) found that red 3 causes cancer in animals, while red 40, yellow 5, and yellow 6 have been found to be contaminated with benzidine or other carcinogens. A subsequent study from the NIH found a link between dyes and increased ADHD or hyperactivity in children.

The US Food and Drug Administration (FDA) has approved the use of colour additives in foods. The FDA requires evidence â€‹â€‹that an ingredient is safe at its intended level before being added to foods, and that the colour additive is included on the product label. The agency also states that it will continue to monitor reports of problems that may be related to food dyes and will "take action when necessary".

"The totality of scientific evidence shows that most children have no adverse effects when consuming foods containing colour additives, but some evidence suggests that certain children may be sensitive to them," reads the FDA's website.

Under current California state law, schools are required to serve free lunch and breakfast to all students from kindergarten through 12th grade. According to state guidelines, students must be given fruits, vegetables, proteins, or whole grains. The rules also set standards for calories, sugars, and fats in these foods.

Gabriel said AB 2316 is headed to the Assembly Education Committee, where it will be heard within the next month.

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